

25CV03042 L.D., et al. v. Romelus Axel Riegert

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-26

Motion: 1. Petition for Approval of Compromise of Claim of L.D., a Minor 2. Petition for Approval of Compromise of Claim of P.D., a Minor 3. Petition for Approval of Compromise of Claim of Z.D., a Minor 4. Order to Show Cause re: Dismissal

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Tentative Ruling: L.D., et al. v. Romelus Axel Riegert

Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/26/2026 - 10:00

Nature of Proceedings

1. Petition for Approval of Compromise of Claim of L.D., a Minor 2. Petition for Approval of Compromise of Claim of P.D., a Minor 3. Petition for Approval of Compromise of Claim of Z.D., a Minor 4. Order to Show Cause re: Dismissal

Tentative Ruling

For Plaintiffs L.D., P.D., Z.D., Jon Daulton, and Carly Daulton: Greyson Goody, Jacob Armstrong, Goody Law Group

For Defendant Romelus Axel Riegert: Barry J. Reagan, Guillermo E. Partida, Claudia H. Mellring, Slaughter Reagan & Cole LLP

RULING

For all reasons stated herein, the petitions for approval of the compromise of the claims of L.D., P.D., and Z.D. are approved. Plaintiff's counsel shall prepare and file orders, as to each minor Plaintiff, on Judicial Council Form MC-351, setting forth the

approved terms of each settlement. Plaintiff's counsel shall also prepare and file orders, as to each minor Plaintiff, on Judicial Council Form MC-355, to deposit money into blocked account. The proposed orders shall be filed no later than September 2, 2026.

The order to show cause re: dismissal is continued to September 16, 2026. The order to show cause will be taken off-calendar, and no appearance will be necessary, if Plaintiffs file a dismissal by September 11, 2026.

Background

This action commenced on May 15, 2025, by the filing of the Judicial Council Form Complaint by Plaintiffs L.D., P.D., Z.D., Jon Daulton, and Carly Daulton against Defendant Romelus Axel Riegert for general negligence. (Note: Due to a common surname, Jon and Carly will be referred to by their first names for clarity. No disrespect is intended.)

As alleged in the complaint:

On February 14, 2024, Plaintiffs were lawfully present at Third Window Brewing, in Santa Barbara, when a dog owned or controlled by Defendant attacked L.D., causing her to sustain serious injuries. (Compl., ¶ GN-1.) Jon, Carly, P.D., and ZD were present and witnessed the attack, causing them to suffer serious emotional distress. (Ibid.)

On July 31, 2025, Defendant answered the complaint with a general denial and 14 affirmative defenses.

On January 12, 2026, Plaintiffs filed an unconditional notice of settlement of the entire case and indicated that a dismissal would be filed within 45 days after January 9, 2026.

A dismissal not having been timely filed, on June 9, 2026, the Court issued an order to show cause why sanctions, including possible dismissal without prejudice, should not be imposed for the failure to file the request for dismissal.

On June 10, 2026, Plaintiffs filed petitions for approval of compromise of the claims of L.D., P.D., and Z.D., who are all minors.

There is no opposition to the petitions.

Analysis

"The requirements that a guardian ad litem be appointed and that the proposed compromise of a minor's claim be approved by the trial Court exist to protect the best interests of the minor." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.)

"While the guardian ad litem has the power to assent to procedural steps that will facilitate a determination of the ward's case [citation], the guardian ad litem's authority is that of " "an agent with limited powers." ' [Citation.]" [Citation.] For example, when a guardian ad litem believes that settling a case is in the ward's best interests, that decision requires Court approval. (Code Civ. Proc., 372.) The Court has a duty to ensure that the ward's rights are protected by the guardian ad litem." (McClintock v. West (2013) 219 Cal.App.4th 540, 549.)

"A petition for Court approval of a compromise of, or a covenant not to sue or enforce judgment on, a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the

disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition. Except as provided in rule 7.950.5, the petition must be submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350)." (Cal. Rules of Court, rule 7.950.)

L.D.'s Petition

L.D. has submitted to following information, on the required judicial council form MC-350 (Petition):

Luisa is 6 years old with a birth date of March 20, 2020. (Petition, ¶ 2.)

On February 14, 2024, at Third Window Brewing, a dog owned, harbored, or controlled by Defendant attacked L.D., while the Daulton family were present. (Petition, ¶¶ 4, 5.)

As a result of the accident, L.D. sustained a 0.5 cm laceration to her right upper cheek area, a 1 cm laceration to her right lower cheek area, and a full-thickness 6 cm laceration to her neck/chin. (Petition, ¶ 6.)

L.D. received repairs of the chin and cheek lacerations with 5-0 Prolene in interrupted fashion. (Petition, ¶ 7.) Medical records, with photographs, are attached.

L.D. has not recovered completely from the effects of the injuries as she sustained permanent scarring and disfigurement below the eye, including visible deformity of the underlying facial musculature that becomes pronounced during normal facial movement such as smiling. (Petition, ¶ 8.)

The terms of the settlement are that Defendant will pay \$360,000.00 in settlement of L.D.'s claim, as a \$265,861.40 payment to Athene Annuity and Life Company, to fund the future periodic payments as outlined in Attachment 10c. (Petition, ¶ 10.) Attachment 10c reflects that the \$265,861.40 payment will result in: (1) a \$10,000.00 lump sum payment on March 20, 2038 (when L.D. turns 18 years old); (2) a \$25,000.00 lump sum payment for each March 20th for the years 2039 through 2041; (3) a \$15,000.00 lump sum payment on March 20, 2042; and (4) a \$567,182.47 lump sum payment on March 20, 2045.

Defendants will pay Z.D. \$126,000.00 and pay P.D. \$114,000.00 arising out of their injuries sustained as a result of the subject incident. (Petition, ¶ 11.)

L.D.'s medical expenses before any reductions total \$6,722.00. Of that amount, total medical expenses paid total \$3,569.90, reductions total \$3,152.10, and medical expenses to be paid from settlement proceeds total \$3,569.90. (Petition, ¶ 12.)

L.D.'s attorneys request that the Court approve \$90,000.00 (25 percent) from L.D.'s settlement as attorney fees and \$568.70 in incurred costs. (Petition, ¶ 13.)

The net balance of settlement proceeds to be paid to L.D. totals \$265,861.40. (Petition, ¶ 15.)

L.D.'s attorneys provide all the information about themselves that is required by California Rules of Court, rule 7.951. (Petition, ¶ 17.)

L.D., through her guardian ad litem, requests that the balance of the settlement, after the above disbursements, be invested in a single-premium deferred annuity, subject to withdrawal only as directed or on authorization of the Court. (Petition, ¶ 18, subd. (b)(3) & attachment 18b(3).)

The Court has reviewed all information provided and the attachments to the petition, and finds, given all of the circumstances, that the settlement is reasonable and in the best interests of L.D.

The Court will approve the petition.

P.D.'s Petition

P.D. has submitted to following information, on the required judicial council form MC-350 (Petition):

P.D. is 3 years old with a birth date of July 16, 2022. (Petition, ¶ 2.)

The facts of the incident are the same as contained in the petition of L.D. (Petition, ¶¶ 4, 5.)

P.D. claims no injuries from the incident. (Petition, ¶ 6.)

P.D. claims no medical treatment as the result of the incident. (Petition, ¶ 7.)

The terms of the settlement are that Defendant will pay \$114,000.00 in settlement of P.D.'s claim, as a \$85,290.73 payment to Athene Annuity and Life Company, to fund the future periodic payments as outlined in Attachment 10c. (Petition, ¶ 10.) Attachment 10c reflects that the \$85,290.73 payment will result in: (1) a \$10,000.00 lump sum payment on July 16, 2040 (when P.D. turns 18 years old); (2) a \$25,000.00 lump sum payment for each July 16th for the years 2041 through 2043; (3) a \$15,000.00 lump sum payment on July 16, 2044; and (4) a \$114,034.63 lump sum payment on July 16, 2047.

Defendants will pay L.D. \$360,000.00 and pay Z.D. \$114,000.00 arising out of their injuries sustained as a result of the subject incident. (Petition, ¶ 11.)

P.D. has no medical expenses. (Petition, ¶ 12.)

P.D.'s attorneys request that the Court approve \$28,500.00 (25 percent) from P.D.'s settlement as attorney fees and \$209.27 in incurred costs. (Petition, ¶ 13.)

The net balance of settlement proceeds to be paid to P.D. totals \$85,290.73. (Petition, ¶ 15.)

P.D.'s attorneys provide all the information about themselves that is required by California Rules of Court, rule 7.951. (Petition, ¶ 17.)

P.D., through her guardian ad litem, requests that the balance of the settlement, after the above disbursements, be invested in a single-premium deferred annuity, subject to withdrawal only as directed or on authorization of the Court. (Petition, ¶ 18, subd. (b)(3) & attachment 18b(3).)

The Court has reviewed all information provided and the attachments to the petition, and finds, given all of the circumstances, that the settlement is reasonable and in the best interests of P.D.

The Court will approve the petition.

Z.D.'s Petition

Z.D. has submitted to following information, on the required judicial council form MC-350 (Petition):

Z.D. is 8 years old with a birth date of March 11, 2018. (Petition, ¶ 2.)

The facts of the incident are the same as contained in the petition of L.D. (Petition, ¶¶ 4, 5.)

Z.D. claims no injuries from the incident. (Petition, ¶ 6.)

Z.D. claims no medical treatment as the result of the incident. (Petition, ¶ 7.)

The terms of the settlement are that Defendant will pay \$126,000.00 in settlement of Z.D.'s claim, as a \$94,237.20 payment to Athene Annuity and Life Company, to fund the future periodic payments as outlined in Attachment 10c. (Petition, ¶ 10.) Attachment 10c reflects that the \$94,237.20 payment will result in: (1) a \$10,000.00 lump sum payment on March 11, 2036 (when Z.D. turns 18 years old); (2) a \$25,000.00 lump sum payment for each March 11th for the years 2037 through 2039; (3) a \$15,000.00 lump sum payment on March 11, 2040; and (4) a \$83,819.62 lump sum payment on March 11, 2043..

Defendants will pay L.D. \$360,000.00 and pay P.D. \$126,000.00 arising out of their injuries sustained as a result of the subject incident. (Petition, ¶ 11.)

Z.D. has no medical expenses. (Petition, ¶ 12.)

Z.D.'s attorneys request that the Court approve \$31,500.00 (25 percent) from Z.D.'s settlement as attorney fees and \$262.80 in incurred costs. (Petition, ¶ 13.)

The net balance of settlement proceeds to be paid to Z.D. totals \$94,237.20. (Petition, ¶ 15.)

Z.D.'s attorneys provide all the information about themselves that is required by California Rules of Court, rule 7.951. (Petition, ¶ 17.)

Z.D., through her guardian ad litem, requests that the balance of the settlement, after the above disbursements, be invested in a single-premium deferred annuity, subject to withdrawal only as directed or on authorization of the Court. (Petition, ¶ 18, subd. (b)(3) & attachment 18b(3).)

The Court has reviewed all information provided and the attachments to the petition, and finds, given all of the circumstances, that the settlement is reasonable and in the best interests of Z.D.

The Court will approve the petition.

Plaintiff's counsel will be ordered to prepare and file an order, on Judicial Council Form MC-351, setting forth the approved terms of each settlement. Plaintiff's counsel will also be ordered to prepare and file orders, in each case, on Judicial Council Form MC-355, to deposit money into blocked account.

Order to Show Cause

The Court notes that Jon and Carly remain as Plaintiffs in this action. The Court will continue the order to show cause so that Plaintiffs' counsel has the opportunity to submit the orders for the Court's signatures and file the dismissal.

Judges

Judge Thomas Anderle

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